

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2594
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-403.06, Arizona Revised Statutes, is amended
3 to read:

4 25-403.06. Parental access to prescription medication and
5 records; address confidentiality program;
6 applicability

7 A. Unless otherwise provided by court order or law, on reasonable
8 request both parents are entitled to have equal access to prescription
9 medication, documents and other information concerning the child's
10 education and physical, mental, moral and emotional health, including
11 medical, school, police, court and other records, directly from the
12 custodian of the records or from the other parent.

13 B. A person who does not comply with a reasonable request shall
14 reimburse the requesting parent for court costs and attorney fees incurred
15 by that parent to force compliance with this section.

16 C. A parent with joint legal custody shall not designate one
17 pharmacy in a single location as the only source of the child's
18 prescription medication without THE agreement of the other parent.

19 D. A parent who attempts to restrict the release of documents or
20 information by the custodian or attempts to withhold prescription
21 medication without a prior court order is subject to appropriate legal
22 sanctions.

23 E. IF A PARENT HAS SOLE LEGAL DECISION-MAKING AUTHORITY AND THAT
24 PARENT IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM ESTABLISHED
25 PURSUANT TO SECTION 41-162 BECAUSE OF THE ACTIONS OF THE OTHER PARENT,
26 SUBSECTION A OF THIS SECTION DOES NOT APPLY TO THE PARENT WHO DOES NOT
27 HAVE SOLE LEGAL DECISION-MAKING AUTHORITY. THE PARENT WITH LEGAL
28 DECISION-MAKING AUTHORITY WHO IS A PARTICIPANT IN THE ADDRESS

1 CONFIDENTIALITY PROGRAM MAY PROVIDE THE INFORMATION REQUIRED PURSUANT TO
2 THIS SUBSECTION BY EMAIL, CELL PHONE APPLICATION OR REGULAR MAIL.

3 Sec. 2. Title 25, chapter 11, article 1, Arizona Revised Statutes,
4 is amended by adding section 25-1502, to read:

5 25-1502. Participants in address confidentiality program; use
6 of substitute address; applicability; violations;
7 classification

8 A. IN ANY MATTER BROUGHT PURSUANT TO THIS TITLE, IF A PARTY TO THE
9 MATTER IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY PROGRAM ESTABLISHED
10 PURSUANT TO SECTION 41-162, THE COURT SHALL USE THE PARTY'S ADDRESS
11 CONFIDENTIALITY PROGRAM SUBSTITUTE ADDRESS IN ALL FILINGS, NOTICES AND
12 COMMUNICATIONS RELATING TO THE MATTER.

13 B. AN ADDRESS CONFIDENTIALITY PROGRAM PARTICIPANT'S RESIDENCE
14 ADDRESS SHALL BE SEALED IN ALL COURT RECORDS AND MAY NOT BE DISCLOSED TO
15 ANY PARTY OR ATTORNEY.

16 C. THE PARTY WHO IS A PARTICIPANT IN THE ADDRESS CONFIDENTIALITY
17 PROGRAM MAY RECEIVE SERVICE AS PRESCRIBED IN SECTION 41-162, SUBSECTION C.

18 D. THE COURT MAY NOT CONSIDER A PARTY'S PARTICIPATION IN THE
19 ADDRESS CONFIDENTIALITY PROGRAM AS EVIDENCE OF ANY OF THE FOLLOWING:

- 20 1. PARENTAL ALIENATION.
21 2. FAILURE TO COOPERATE WITH THE OTHER PARTY.
22 3. INSTABILITY.

23 E. ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR DISCLOSES
24 INFORMATION IN VIOLATION OF THIS SECTION OR SECTION 41-165 IS GUILTY OF A
25 CLASS 1 MISDEMEANOR. ANY PERSON WHO INTENTIONALLY OR KNOWINGLY OBTAINS OR
26 DISCLOSES INFORMATION IN VIOLATION OF THIS SECTION OR SECTION 41-165 FOR
27 THE PURPOSE OF HARASSMENT, STALKING OR DOMESTIC VIOLENCE AGAINST A PARTY
28 TO A MATTER THAT IS BROUGHT PURSUANT TO THIS TITLE IS GUILTY OF A CLASS 6
29 FELONY.

30 Sec. 3. Section 41-162, Arizona Revised Statutes, is amended to
31 read:

32 41-162. Address confidentiality program; duties of secretary
33 of state; substitute address; application
34 assistants

35 A. ~~On or before December 31, 2012,~~ The secretary of state shall
36 establish the address confidentiality program to allow persons who have
37 been subjected to domestic violence offenses, sexual offenses or stalking
38 to keep their residence addresses confidential and not accessible to the
39 general public. Participants in the program shall receive a substitute
40 address that becomes the participant's lawful address of record.

41 B. The secretary of state shall:

42 1. Designate a substitute address for a program participant that is
43 used by state and local government entities as set forth in this section.

44 2. Receive mail sent to a program participant at a substitute
45 address and forward the mail to the program participant as set forth in
46 paragraph 3 of this subsection.

47 3. Receive first-class, certified or registered mail on behalf of a
48 program participant and forward the mail to the program participant for no

1 charge. The secretary of state may arrange to receive and forward other
2 classes or kinds of mail at the program participant's expense. The
3 secretary of state is not required to track or otherwise maintain records
4 of any mail received on behalf of a program participant unless the mail is
5 certified or registered mail.

6 C. Notwithstanding any other law and except as provided by court
7 rule, a program participant may be served by registered mail or by
8 certified mail, return receipt requested, addressed to the program
9 participant at the program participant's substitute address with any
10 process, notice or demand required or allowed by law to be served on the
11 program participant. This subsection does not prescribe the only means,
12 or necessarily the required means, of serving a program participant in
13 this state.

14 D. A COURT MAY NOT ORDER THE DISCLOSURE OF A PROGRAM PARTICIPANT'S
15 RESIDENCE ADDRESS OR LOCATION INFORMATION UNLESS THE COURT FINDS, BY CLEAR
16 AND CONVINCING EVIDENCE, THAT DISCLOSURE OF A PROGRAM PARTICIPANT'S
17 RESIDENCE ADDRESS IS ESSENTIAL TO A COMPELLING STATE INTEREST AND THAT NO
18 REASONABLE ALTERNATIVE EXISTS TO ACCOMPLISH THAT PURPOSE WITHOUT THE
19 DISCLOSURE OF THE PROGRAM PARTICIPANT'S RESIDENCE ADDRESS.

20 ~~D.~~ E. The secretary of state may designate as an application
21 assistant any person who:

22 1. Provides counseling, referral or other services to victims of
23 domestic violence, a sexual offense or stalking.

24 2. Completes any training and registration process required by the
25 secretary of state.

26 ~~F.~~ F. Any assistance and counseling rendered by the secretary of
27 state or an application assistant to an applicant related to this section
28 is not legal advice.

29 Sec. 4. Section 41-165, Arizona Revised Statutes, is amended to
30 read:

31 41-165. Disclosure of actual address prohibited; exceptions;
32 violations; classification

33 A. The secretary of state shall not disclose any address or
34 telephone number of a program participant other than the substitute
35 address designated by the secretary of state, except under any of the
36 following circumstances:

37 1. The information is required by direction of a court order.
38 ~~, except that~~ Any person to whom a program participant's address or
39 telephone number ~~has been~~ IS disclosed PURSUANT TO THIS PARAGRAPH shall
40 not disclose the address or telephone number to any other person unless
41 ~~permitted~~ ALLOWED to do so by order of the court or as otherwise provided
42 by law.

43 2. The secretary of state grants a request by a state or local
44 government entity pursuant to section 41-167, subsection D.

45 B. The secretary of state shall provide immediate notification of
46 disclosure to a program participant if disclosure is made pursuant to
47 subsection A of this section.

1 C. If, at the time of application, an applicant or an individual
2 identified pursuant to section 41-163, subsection C, paragraph 10 is
3 subject to a court order related to dissolution of marriage proceedings,
4 child support or the allocation of parental responsibilities or parenting
5 time, the secretary of state shall notify the court that issued the order
6 of the certification of the program participant in the address
7 confidentiality program and the substitute address designated by the
8 secretary of state. If, at the time of application, an applicant or an
9 individual identified pursuant to section 41-163, subsection C, paragraph
10 10 is involved in a court action related to dissolution of marriage
11 proceedings, child support or the allocation of parental responsibilities
12 or parenting time, the secretary of state shall notify the court having
13 jurisdiction over the action of the certification of the applicant in the
14 address confidentiality program and the substitute address designated by
15 the secretary of state.

16 D. A person shall not intentionally or knowingly obtain [OR ATTEMPT
17 TO OBTAIN] a program participant's actual address or telephone number[.
18 WHETHER] from the secretary of state or a state or local government
19 entity[. OR BY ANY OTHER MEANS.] knowing that the person is not authorized
20 to obtain the address information.

21 E. An employee of the secretary of state or a state or local
22 government entity shall not intentionally or knowingly disclose a program
23 participant's actual address or telephone number unless the disclosure is
24 permissible by law. This subsection ~~only~~ applies **ONLY** if an employee
25 obtains a program participant's actual address or telephone number during
26 the course of the employee's official duties and, at the time of
27 disclosure, the employee has specific knowledge that the actual address or
28 telephone number disclosed belongs to a program participant.

29 F. Any person who intentionally or knowingly obtains [OR ATTEMPTS
30 TO OBTAIN] or discloses information in violation of this section is guilty
31 of a class 1 misdemeanor. **ANY PERSON WHO INTENTIONALLY OR KNOWINGLY**
32 **OBTAINS [OR ATTEMPTS TO OBTAIN] OR DISCLOSES INFORMATION IN VIOLATION OF**
33 **THIS SECTION FOR THE PURPOSE OF HARASSMENT, STALKING OR DOMESTIC VIOLENCE**
34 **AGAINST A PARTY TO A MATTER THAT IS BROUGHT PURSUANT TO TITLE 25 IS GUILTY**
35 **OF A CLASS 6 FELONY. [IF THE CONDUCT INVOLVES SURVEILLANCE OF A MINOR,**
36 **USE OF A THIRD PARTY OR REPEATED ATTEMPTS, THE PERSON IS GUILTY OF A**
37 **CLASS 5 FELONY.]**

38 Enroll and engross to conform
39 Amend title to conform
And, as so amended, it do pass

QUANG H. NGUYEN
CHAIRMAN

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